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Date: 8/28/26

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Case #21CHCV00794

DEMURRER TO THE
FOURTH AMENDED COMPLAINT

Demurrer filed on 3/17/26.

MOVING PARTY: Defendant Hach Company (Doe 5)

RESPONDING PARTY: Plaintiff Estate of Rosa Pleitez, by
and through her husband, Rigoberto Pleitez

NOTICE: ok

Demurrer is to the entire Fourth Amended Complaint:

1. Negligence for Wrongful Death
2. Strict Products Liability
3. Survival Action

Additionally, Hach requests that all causes of action be

dismissed with prejudice.

RULING: The demurrer is sustained without leave to amend. The action as against Hach is dismissed with prejudice.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's (Plaintiff) claim that from 10/13/19 through at least 9/21/20, Decedent Rosa Pleitez (Decedent) was exposed to chemicals and caustic products produced, manufactured, distributed and/or sold by Defendant Miles Chemical Company, Inc. (Miles Chemical), Macdermid Enthone, Inc. (Macdermid) and others while employed as a janitor for Carbonite Industries in Riverside, California. It is alleged that Decedent developed catastrophic interstitial lung disease with major injury and disability that affected her ability to work and support herself and her family and ultimately, was a substantial factor in her death on or about 3/26/22.

On 10/8/21, Plaintiffs Rosa Pleitez and Rigoberto Pleitez filed the original complaint in this action asserting causes of action for: (1) Strict Liability – Design Defect, (2) Strict Liability – Failure to Warn, (3) Negligence, (4) Breach of Implied Warranty and (5) Loss of Consortium. The original complaint alleged that from 10/13/19 through 9/21/20, Rosa Pleitez/Decedent was exposed to heavy chemicals and caustic products produced, manufactured, distributed and/or sold by different defendants while employed as a janitor at Carbonlite Industries in Riverside, California. (Complaint ¶¶1-2). While Plaintiff's 3rd cause of action in the complaint was titled "negligence," it was actually a claim for negligent products liability as it alleged "negligence in the manufacture, sale and distribution of dangerous and defective product[,] design defects and failure to provide adequate and accurate warnings, contained on their chemical products ..." (Complaint ¶72). The complaint alleged that Decedent discovered her toxic exposure at the Carbonlite factory in September 2020. (Complaint ¶15).

On 3/26/22, Plaintiff Rosa Pleitez/Decedent died. (First Amended Complaint ¶2). On 5/24/23, Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez (Plaintiff) filed

a First Amended Complaint asserting causes of action for: (1) Wrongful Death and (2) Survival Action. The First Amended Complaint alleges that from 10/13/19 through 9/21/20, Decedent was exposed to defective chemicals produced, manufactured, distributed and/or sold by Defendants while employed as a janitor for Carbonite Industries in Riverside, California. (FAC ¶¶1-2).

Plaintiff's 2nd cause of action for survival action in the First Amended Complaint was based on the same strict liability – design defect, strict liability – failure to warn, products liability – negligence and breach of implied warranty claims alleged in the original complaint. (See FAC ¶53).

Pursuant to a Stipulation and Order, on 4/14/25, Plaintiff filed a Second Amended Complaint alleging causes of action for: (1) Wrongful Death against Miles Chemical, Macdermid and Does 11-200; (2) Survival Action against Miles Chemical, Macdermid and Does 1-200 and (3) Negligence against Prologis and Does 1-10. (See 4/14/25 Revised Stipulation & Order and Second Amended Complaint).

After the Court sustained the demurrer of Defendants Prologis Targeted U.S. Logistics Fund, L.P. (Doe 1) and Prologis, L.P (Doe 2) (collectively, the Prologis), on 8/21/25, Plaintiff filed a Third Amended Complaint alleging causes of action for: (1) Wrongful Death against all Defendants including Does 1-200; (2) Strict Products Liability against Miles Chemical Company, Inc., Macdermid Enthone including Does 1-200; and (3) Survival Action "Against Defendants and Does 1 through 200, Inclusive."

On 9/10/25, Prologis filed and served a motion to strike the Third Amended Complaint on the ground that it was untimely filed and a demurrer to the Third Amended Complaint which were scheduled for hearing on 12/12/25. On 10/9/25, pursuant to a stipulation between Plaintiff and Defendants Macdermid Enthone, Inc. and Miles Chemical Company, the Court ordered that Macdermid Enthone, Inc. and Miles Chemical Company had until 11/7/25 to file a response to the Third Amended Complaint and Plaintiff had until 11/7/25 to file a further amended complaint. (See 10/9/25 Stipulation and Order).

On 11/12/25, Plaintiff filed the subject Fourth Amended Complaint (4AC). The Fourth Amended Complaint alleges the following causes of action: (1) Negligence for Wrongful

Death against “all defendants including Does 1 through 200, inclusive”; (2) Strict Products Liability against “all Chemical Defendants including Does 1 through 200, inclusive” (Chemical Defendants are defined as Miles Chemical Company, Inc. and Macdermid Enthone, Inc. and Does 10-200) (4AC ¶¶1, 6) and (3) Survival Action “against Defendants and Does 1 through 200, inclusive.”

On 12/19/25, the Court sustained Prologis’ demurrer to the Fourth Amended Complaint without leave to amend. On 1/5/26, the Court entered a judgment of dismissal of Prologis with prejudice. On 1/6/26, filed Doe amendments naming Hach Company (Hach) in place of Doe 5. On 1/21/26, Plaintiff served Hach.

After meet and confer efforts failed to resolve the issues Hach had with the Fourth Amended Complaint, on 3/17/26, Hach filed and served the instant demurrer to the entire Fourth Amended Complaint. Plaintiff has not opposed or otherwise responded to the demurrer. On 8/21/26, Hach filed and served a Notice of Non-Opposition to the Demurrer.

ANALYSIS

Hach’s Request for Judicial Notice is granted.

Failure to Timely Serve Action

Plaintiff’s claims against Hach are subject to mandatory dismissal for failure to effectuate service on Hach within 3 years of inception of the action. See CCP 583.210(a); CCP 583.250. The deadline is not extended by the fact that Hach was named in place of a Doe defendant. See *Inversiones Papaluchi S.A.S.* (2018) 20 CA5th 1055, 1061; *Higgins* (2017) 15 CA5th 973, 975, 982. Here, Hach was served in January 2026 which is more than 4 years after this action was commenced on 10/8/21.

Failure to Allege Sufficient Facts to State a Cause of Action Against Hach

The 4AC fails to clearly identify Hach’s role in this case. The 4AC fails to allege any specific conduct by Hach who is named in place of Doe 5. Plaintiff first alleges that Does 1-10,

“owned, managed, leased and marketed the premises” which would make Hach a “premises or landlord defendant.” (4AC ¶7). However, the 2nd cause of action alleges a strict products liability claim against “all CHEMICAL DEFENDANTS including Does 1 through 200.” (4AC, p.6:16).

If Plaintiff intended to include Hach in the products liability cause of action, the claim fails.

To state a cause of action for products liability, a plaintiff must allege facts identifying the defendant's specific product, the manner and circumstances of exposure, and a non-speculative causal connection to the injury. Bockrath (1999) 21 C4th 71, 79-80, 82-84. Additionally, to state a strict products liability claim, a plaintiff must identify a known risk specific to that product for which a warning was not provided. Anderson (1991) 53 C3d 987, 1000. Here, the 4AC fails to identify any product allegedly manufactured or supplied by Hach, the manner and circumstances of exposure to such product and/or a risk of such product that was not warned against.

Plaintiff also fails to allege sufficient facts to state claims for negligence/wrongful death and a survival cause of action against Hach. Among other things, a premises liability cause of action requires a plaintiff to allege facts showing the premises owner was negligent in the use or maintenance of the property and that the negligent conduct was a substantial factor in causing plaintiff's injuries. Kesner (2016) 1 C5th 1132, 1159; CACI 1000. The 1st cause of action fails to state a claim against Hach because the 4AC does not allege any negligent or harmful conduct specifically attributable to Hach. Nor has Plaintiff alleged facts to establish that Hach breached any duty of care owed to Decedent which are necessary elements of a negligent wrongful death cause of action. See Ladd (1996) 12 C4th 913, 917; Novak (2018) 22 CA5th 189, 195.

Whether under a premises liability or products liability theory, a causal connection must exist between the defendant's conduct or the product exposure to the claimed injury. See Kesner, supra at 1159; Bockrath, supra at 79-80, 82-84; Setliff (1995) 32 CA4th 1525, 1533. Here, Plaintiff has failed to allege any facts to show a causal connection between Hach's conduct or a product supplied

by Hach and Decedent's injuries. While the 4AC generally alleges that "Defendants" failed to warn about "dangerous chemical substances" and "toxic gases" at the Carbonlite facility and that such substances could cause lung injury and interstitial lung disease, Plaintiff does not plead any facts to indicate that Hach controlled the facility, that Hach's conduct caused Decedent's injuries or that any chemical product attributable to Hach was at the facility. (See 4AC, generally and specifically ¶¶2, 6-7, 13).

A survival cause of action is merely a statutory mechanism that allows Decedent's own causes of action to be enforced after her death. See CCP 377.30; Quiroz (2006) 140 CA4th 1256, 1264-1265. Here, Plaintiff's survival cause of action merely incorporates the preceding allegations. (4AC ¶¶26-27). Therefore, it fails for the same reasons the other causes of action fail to state claims.

Statute of Limitations

An action for injury to, or for the death of, an individual caused by the wrongful act or neglect of another must be filed within two years of the injury. CCP 335.1. Causes of action that survive the death of an individual may be brought before the expiration of the latter of: (a) six months after the person's death or (b) the limitations period that would have been applicable if the person had not died. CCP 366.1. The statute of limitations usually begins when a cause of action accrues which is generally on the date of injury. Bernson (1994) 7 C4th 926, 931.

Generally, an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint was filed. Woo (1999) 75 CA4th 169, 176. CCP 474 provides an exception to the general rule when a new defendant is substituted for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. Id.

The relation-back doctrine, under CCP 474, may save an otherwise time-barred amended complaint that substitutes a new defendant in place of a Doe defendant if the following requirements are met: (1) the amended complaint is based on the same general set of facts as the original; (2) the original complaint stated a valid cause of action against the now-identified defendant; and (3) the plaintiff was “genuinely ignorant” of the defendant’s identity or the facts rendering defendant liable when the original complaint was filed. *Eghtesad* (2020) 51 CA5th 406, 417.

Plaintiff has not established that the wrongful death and/or the negligence/premises liability cause of action are based on the same general facts as the original Complaint or First Amended Complaint. Although the causes of action arise out of the same exposure to chemicals at the factory, they are not based on the same instrumentality. See *Coronet Manufacturing Co.* (1979) 90 CA3d 342, 344-347. Neither the original complaint nor the First Amended Complaint allege that Doe defendants who owned, possessed, or controlled “Carbonlite Industries in Riverside, California,” where Decedent was injured while working, owed Decedent a duty of care or that those Doe defendants breached the duty of care or caused the alleged injuries. (See Complaint and FAC, generally). In the original complaint, Plaintiffs alleged that “...Defendants, and each of them, breached their duty of reasonable care and failed to exercise ordinary care in the design, research, development, manufacturing, testing, marketing, supply, promotion, advertisement, packaging, sale and distribution of their chemical products, in that Defendants, and each of them, manufactured, produced, supplied and distributed defective chemical products containing ingredients Defendants knew or had reason to know created a significant risk of harm and injury with unreasonably dangerous side effects, and failed to prevent or adequately warn of these known risks and injuries.” (Complaint ¶ 69). The 1st and 3rd causes of action in the Fourth Amended Complaint as against landlord defendants are based on such defendants’ alleged negligence regarding ventilation and warnings related to the accumulation of “DANGEROUS SUBSTANCE.” (See 4AC ¶¶ 17, 19.1(a), (b), 27). The original complaint includes no allegations regarding “DANGEROUS SUBSTANCE,” or a duty to provide “adequate ventilation” or “ADEQUATE WARNING relating to exposure to such DANGEROUS SUBSTANCE” from their accumulation “without adequate ventilation and without respiratory protection.” (Compare

Original Complaint, generally and 4AC, generally).

Plaintiff has also failed to establish that the Complaint and First Amended Complaint stated a valid cause of action against Hach. As noted above, neither the complaint nor the First Amended Complaint allege that the Doe defendants who “owned, managed, leased and marketed the premises the former Carbonlite Industries production plant premises” had a duty “to provide adequate warnings that employees would be exposed to harmful accumulations of toxic gases unless they wore protective masks and unless adequate ventilation evacuated the chemicals from the facility” as alleged in the Fourth Amended Complaint. (See Original Complaint, generally; FAC, generally; 4AC ¶¶7, 24).

Plaintiff has also failed to establish genuine ignorance of Hach’s identity. To establish genuine ignorance, the plaintiff must have been unaware of the defendant’s identity, defendant’s culpability or the law did not give the plaintiff a right of action until after the filing of the action. *Marasco* (1978) 21 C3d 82, 88; *Snoke* (1991) 235 CA3d 1427, 1431. The Fourth Amended Complaint does not allege that Plaintiff is “ignorant of the name” of Hach or facts giving rise to a cause of action against Hach. (See 4AC, generally).

Since the inception of the action, Plaintiff has alleged that the claims arise from Decedent’s exposure to chemicals while working at the Carbonlite factory and Hach, as Doe 5, is alleged to be landlord of the property on which the factory is located. (See Complaint ¶¶1, 20, 23-27, 29, 42, 63, 80; FAC, generally). Plaintiff has failed to explain why it took more than four years to determine they had a claim against Hach.

CONCLUSION

The unopposed demurrer is sustained without leave to amend. Plaintiff has now had multiple opportunities to plead his claims and has failed to adequately do so. More importantly, certain of the defects noted above are fatal to Plaintiff’s claims against Hach and cannot be cured by amendment. Pursuant to Hach’s request all of the causes of action in the Fourth Amended Complaint are dismissed with prejudice as against Hach.